



COURSEWORK SUBMISSION TEMPLATE

*Students: In preparing and submitting this assessment,
please ensure you adhere to the Coursework*

Student number: (for group work please include the numbers of all participating students)	3103914
Word count (including footnotes):	4477

Question(s)/Assignment to be answered (e.g. Essay title):

Due to the ease of sharing and virality of content online, moral rights — like the right of integrity and the right of attribution — are more important in the digital environment than any economic rights.

Critically discuss the statement with reference to relevant literature and legal authority. Whilst comparative analysis is permitted, the UK must be one of the jurisdictions considered, in line with the School of Law marking criteria.

*Students: your coursework submission should be inserted below, indicating question numbers
(where there are multiple elements):*

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1. Introduction

Digital technologies have transformed the creation, circulation, and reception of creative works. Online platforms now enable material to be copied, reposted, altered, and disseminated to vast audiences within moments. This essay argues that, under UK law, moral rights are not more important than any economic rights. Rather, although digital virality strengthens the case for protecting attribution and integrity, economic rights remain structurally central because they govern copying, communication to the public, licensing, and platform-based enforcement. The absolutist claim in the question should therefore be rejected. The essay begins by defining moral rights and economic rights within the UK copyright framework. It then examines how the digital environment amplifies the relevance of attribution and integrity, while also exposing the doctrinal and practical limits of their protection. It next analyses how economic rights continue to organise digital exploitation, licensing, and intermediary enforcement. Finally, it assesses whether virality alters that balance in practice.

2. Definitions

2.1 Moral Rights

Moral rights protect the personal link between an author and a copyrighted work.¹ In UK copyright law they commonly include the right to be identified as author, the right to object to derogatory treatment, the right not to have a work falsely attributed, and a limited privacy right for certain commissioned photographs and films.² These rights protect reputation³ and dignity⁴ and rather than market value. They are generally non-transferable,⁵ although they may be waived,⁶ and some require prior assertion to be enforceable.⁷ Their remedies are directed at reputational harm and misrepresentation.⁸

2.2 Economic Rights

Economic rights are the exclusive rights that allow the copyright owner to control and monetise exploitation of a protected work.⁹ In UK law they include rights of copying, issuing copies to the public, rental and lending, public performance, communication to the public, and making adaptations.¹⁰ These rights are proprietary, commercially significant, and transferable, so they can be assigned or licensed to other people.¹¹ Their function is to enable the functioning of markets for creative works and support the creation of valuable creative outputs.¹² Remedies focus on stopping unauthorised use and recovering financial losses.¹³

¹ WIPO, 'Understanding Copyright and Related Rights' (WIPO 2016) 9.

² Copyright, Designs and Patents Act 1988 (CDPA), ss 77, 80, 84–85.

³ *ibid*, s 80(2)(b).

⁴ Tanya F. Aplin and Ahmed Shaffan Mohamed, 'The Concept of 'Reputation' in the Moral Right of Integrity' (2019) 14 *Journal of Intellectual Property Law & Practice* 268, 276–277.

⁵ CDPA, s 94.

⁶ *ibid*, s 87(2).

⁷ *ibid*, s 78(1)–(2).

⁸ *ibid*, ss 80(2)(b), 84, 103.

⁹ WIPO (n 1), 9–10.

¹⁰ CDPA, ss 17–21.

¹¹ *ibid*, ss 90(1)–(3), 92.

¹² Simone Schroff, 'The Purpose of Copyright—Moving Beyond the Theory' (2021) 16 *Journal of Intellectual Property Law & Practice* 1262, 1263, 1269.

¹³ CDPA, ss 96(2)–97(1).

3. Moral Rights in the Digital Environment

3.1 The Right of Attribution and Digital Dissemination

Digital dissemination heightens the importance of attribution because online sharing is frictionless while authorship is easily obscured. Works often circulate beyond their original setting, so audiences may encounter them without clear indication of who created them or where the work first appeared. The right of attribution helps preserve ‘author recognition’ in those conditions.¹⁴ In the UK, however, the right often depends on assertion¹⁵ and may be waived,¹⁶ which makes online circulation especially challenging. When a work is disseminated online, attribution may disappear.¹⁷ The loss is practical as well as symbolic, because recognition can support income, networks, future commissions, and longer-term professional visibility.¹⁸

Attribution failures often begin with stripping. Metadata may be lost during file processing, such as compression¹⁹ and format conversion.²⁰ Even when authorship remains on a platform, interface design may hide it by burying credits in captions, menus, or secondary screens. Social media prioritises circulation of content;²¹ so each repost can further weaken visible credit. This turns attribution into a collective action problem: users treat credit as optional, and platforms prioritise engagement over authorship. Moral rights matter here because they frame attribution as an obligation rather than mere etiquette.

¹⁴ Abbe Brown and others, *Contemporary Intellectual Property: Law and Policy* (6th edn, Oxford University Press 2023) 218.

¹⁵ CDPA, s 78.

¹⁶ *ibid*, s 87.

¹⁷ Jane C. Ginsburg, ‘The Most Moral of Rights: The Right to Be Recognized as the Author of One’s Work’ (2016) 8 *George Mason Journal of International Commercial Law* 44, 65.

¹⁸ Loizos Petrides and Madalena Vila de Brito, ‘The Impact of Digital Presence on the Careers of Emerging Visual Artists’ (2024) 13 *Social Sciences* 313, 313.

¹⁹ Nishchal Soni, ‘Forensic Value of Exif Data: An Analytical Evaluation of Metadata Integrity across Image Transfer Methods’ (2025) 2 *Perspectives in Legal and Forensic Sciences* 1, 9.

²⁰ Yongxuan Wang, Ning Li, and Yingai Tian, ‘Semantic Metadata Integration Support Method for Editable Re-flowable Document OOXML and Fixed-layout Document PDF’ (The 7th International Conference on Computer Science and Application Engineering, Virtual Event, October 2023).

²¹ H. Boshier and S. Yeşiloğlu, ‘An Analysis of the Fundamental Tensions Between Copyright and Social Media: The Legal Implications of Sharing Images on Instagram’ (2019) 33 *International Review of Law, Computers & Technology* 164, 165.

The assertion requirement also shapes digital relevance. Print publication usually supports attribution through standard credit lines and editorial control. Online, by contrast, works may be uploaded by third parties, scraped, or embedded without the author's involvement. Creators may discover uncredited use only after wide circulation, making *ex ante* assertion difficult and leaving them to react after reputational and commercial effects have already accumulated. Yet digital systems can also reduce that problem. Persistent author fields, verified identifiers, and default credit prompts could better align platform design with legal expectations, while also making compliance easier for ordinary users who share content quickly.

Attribution also affects discoverability and the credibility of creative markets. When a work is shared without credit, audiences cannot easily trace it back to a source, creating obstacles to lawful use.²² Commissioning decisions may depend on visible authorship,²³ so omitted credit can mean lost opportunities even where loss is difficult to prove. Online dissemination has a long tail: uncredited copies may remain searchable for years. A minor omission can therefore become a lasting structural disadvantage, which is why attribution should be treated as a default rather than a courtesy in digital environments.

3.2 The Right of Integrity and Online Transformative Uses

The right of integrity is significant online because digital culture invites alteration, excerpting and reframing. English law does not treat every modification as actionable: the treatment must be derogatory, meaning distortion, mutilation, or something otherwise prejudicial to the author's honour or reputation.²⁴ That matters online, where meaning changes through captions, edits and reposts rather than destruction of the work itself. A photograph turned into a meme, a song sampled under new lyrics, or a text clipped into a hostile thread may alter how audiences perceive the creator. The digital environment intensifies integrity's importance for authors, even though the legal test remains narrow.

²² Jhonny Antonio Cadavid, 'The Origin and Purpose of Legal Protection for the Integrity of Copyright Metadata' (2023) 54 *International Review of Intellectual Property and Competition Law* 1179, 1193.

²³ Loizos Petrides and Madalena Vila de Brito (n 18), 313.

²⁴ CDPA, s 80(2)(b).

The UK cases illustrate that narrowness. In *Confetti*, the court accepted that the integrity right could address remix culture, yet stressed that alteration alone was insufficient; there had to be prejudice to honour or reputation.²⁵ That limitation is defensible because it stops the right becoming a general objection to unauthorised modification. In digital environments, however, that same safeguard weakens protection. Online modifications are hard to monitor²⁶ and may be discovered only after wide circulation. Late detection also makes reputational harm harder to identify, link to the alteration, and prove within the integrity framework. *Confetti* therefore supports a mixed conclusion: UK law recognises that transformative digital uses can implicate integrity, but the threshold remains high enough that much online reputational harm escapes protection in practice.

That problem becomes sharper in cases of recontextualisation. A work may become prejudicial not because it has been materially altered, but because it is placed in an inappropriate setting,²⁷ for example where a peaceful artwork is reposted on a racist forum. *Morrison Leahy Music* and *Tidy* suggest that UK doctrine more readily recognises prejudice when it can be tied to the treatment of the work itself rather than the wider message produced by its presentation.²⁸ In other words, the law is better equipped to address visible alteration than contextual reframing alone. Yet digital harm might arise precisely through recontextualisation: the work may remain unchanged while its meaning is radically recast by captions, surrounding content, or the platform context. This reveals a structural gap between UK integrity doctrine and the ways online harm occurs.

Even so, the right of integrity should not be expanded to suppress criticism, parody or commentary. Because digital culture depends on quotation, remix and reposting as forms of

²⁵ *Confetti Records v. Warner Music UK Ltd* [2003] EWHC 1274 (Ch) (*Confetti*) [150].

²⁶ Mira T. Sundara Rajan, 'Moral Rights in the Digital Age: New Possibilities for the Democratization of Culture' (2010) 16 *International Review of Law, Computers & Technology* 187, 187.

²⁷ Gerald Dworkin, 'The Moral Right of the Author: Moral Rights and the Common Law Countries' (1994) 19 *Columbia-VLA Journal of Law & the Arts* 229, 249.

²⁸ *Morrison Leahy Music Ltd v. Lightbond Ltd* [1993] EMLR 144, 151; Sophie Eastwood, 'Tidy v Trustees of the Natural History Museum [1996] 39 IPR 501' (*Centre for Intellectual Property and Information Law*, June 2015) <<https://www.civil.law.cam.ac.uk/virtual-museum/tidy-v-trustees-natural-history-museum-1996-39-ipr-501>> accessed 15 March 2026.

expression in online spaces,²⁹ reframing alone should not trigger liability. The better approach is limited: integrity should intervene only where recontextualisation materially distorts the meaning of the work in a way prejudicial to the author's honour or reputation, or places in a context intended to damage that reputation. This preserves space for speech while recognising that some digital practices do more than comment on a work; they use it to injure the author's honour or reputation.

3.3 Remedies and Practical Effectiveness in Platform Contexts

Remedies and practical effectiveness in platform contexts determine whether moral rights function as more than aspirational standards. In digital dissemination the problem is speed, because distorted content may spread widely before court remedies become effective.³⁰ Feasibility therefore depends on rapid intermediary responses. This matters for moral rights because the harm is immediate and reputational rather than economic. UK law also shows that integrity claims are demanding. In *Confetti* the claimant failed to show derogatory treatment harming honour or reputation, illustrating both the evidential burden and the uncertainty of outcomes.³¹ Litigation is therefore an unreliable primary tool and should operate as a backstop, while low-friction platform measures restore credit and reduce misrepresentation.

Platforms can implement remedies that mirror the aims of moral rights without requiring a court order in every case. For attribution, feasible measures include persistent author fields, visible credit across resharing, and verified creator identifiers that survive compression and reposting. For integrity, feasible measures include labels distinguishing originals from materially modified versions, contextual notices for misleading captions, and removal where there is clear false attribution or malicious manipulation. These steps are realistic because they fit existing moderation and copyright complaint systems. Yet feasibility remains limited by the UK requirement that the right to be identified may need assertion and may be waived,³² and by the difficulty of setting thresholds that do not chill parody and criticism. Overall, moral-rights

²⁹ Elisabetta Adami, 'The Rhetoric of the Implicit and the Politics of Representation in the Age of Copy-and-Paste' (2012) 37 *Learning, Media and Technology* 131, 131.

³⁰ Sharon Bar-Ziv and Niva Elkin-Koren, 'Behind the Scenes of Online Copyright Enforcement: Empirical Evidence on Notice & Takedown' (2018) 50 *Connecticut Law Review* 339, 349.

³¹ *Confetti* (n 25) [150].

³² CDPA, ss 78, 87.

remedies are feasible online when operationalised through fast platform processes, while courts remain reserved for persistent, commercial, or highly reputational disputes. Clear guidance and transparent appeal routes can improve legitimacy and reduce repeat conflicts over edits.

4. Economic Rights in the Digital Environment

4.1 Exclusive Rights Licensing and Digital Exploitation

Economic rights sit at the centre of digital exploitation because most online uses involve acts reserved to the copyright owner, especially copying, communication to the public, distribution, and monetisation. In UK copyright law, authorisation is the starting point for digital use,³³ and its significance is structural: it determines how platforms are built, licensed, and commercialised. This is illustrated by cases such as *TuneIn*, where the provision of access to unlicensed radio streams to UK users was treated as a communication to the public requiring permission.³⁴ Because platform dissemination routinely implicates these acts, economic rights do not merely respond to infringement *ex post*; they shape the *ex ante* architecture of digital markets. Accordingly, even where authors care about attribution or respectful treatment, those moral interests operate within a framework first defined by whether the work may be hosted, streamed, distributed, or monetised at all. This makes economic rights significant in digital circulation, because the system is organised and stabilised through economic control.

Licensing is the main route to lawful digital exploitation. Because UK copyright law usually involves several restricted acts, including copying and communication to the public,³⁵ online services may require the copyright owner's permission at multiple points. Legality therefore depends on whether those acts are authorised across rights, territories, delivery chains, and commercial uses in each market. *ITV Broadcasting* illustrates this: retransmitting broadcasts online to a new public is itself a restricted act requiring permission, even where the original broadcast was lawful.³⁶ It follows that stages of digital dissemination may trigger distinct rights, so lawful circulation depends on permission covering the whole chain rather than any act viewed alone. Licensing is therefore not just a transaction but the mechanism through which digital circulation is structured. Economic rights make that mechanism possible because, as proprietary and transferable rights, they can be assigned, divided, and bundled across complex digital markets.³⁷

³³ *ibid*, s 16.

³⁴ *Tunein Inc v. Warner Music UK Ltd* [2021] EWCA Civ 441 (*Tunein*) [169], [171].

³⁵ H. Boshier and S. Yeşiloğlu (n 21), 167.

³⁶ Case C-607/11 *ITV Broadcasting Ltd v. TVCatchup Ltd* EU:C:2013:147 (*ITV Broadcasting*) [26], [40].

³⁷ CDPA, s 90(1)–(2).

4.2 Enforcement Architecture and the Relative Strength of Remedies

Enforcement in digital contexts is shaped by scale, because infringement often occurs across many platforms.³⁸ In such conditions, remedies applied rapidly through standardised criteria are more valuable than full adjudication in every instance. Economic rights claims are therefore the most workable, since they correspond to observable acts such as copying, communication to the public, and making available.³⁹ UK practice reflects this advantage. In *Newzbin2*, the court granted website-blocking relief against continued infringement, showing that economic rights can generate targeted and scalable intervention against persistent digital wrongdoing.⁴⁰ They also suit intermediary handling, because platforms need decision rules that can be applied consistently, quickly, and at scale. Their relative strength lies less in conceptual richness than in administrative clarity, platform compatibility, and effective remedial traction online, where speed, repeatability, and manageable proof thresholds determine practical success.

Intermediaries largely determine practical outcomes online because they intervene in distribution and visibility.⁴¹ Consequently, copyright enforcement often proceeds through notice-based systems that remove content, restrict access, or redirect revenue in response to claims framed in exclusive-rights terms. *Cartier* supports this intermediary-centred model by showing that online enforcement is more effective in most cases when directed at actors controlling access than at dispersed end users.⁴² Once enforcement is routed through intermediaries, it tends to favour rights that can be applied through standardised platform criteria. Automated matching tools therefore become a logical extension, since platforms need repeatable, low-cost methods for identifying protected audio, video, and image content and triggering preset responses such as blocking, takedown, or revenue sharing. Although such systems may overreach lawful reuse, they show why economic rights are operationally stronger

³⁸ Enrico Bonadio, Nicola Lucchi, and Giuseppe Mazziotti, ‘Will Technology-Aided Creativity Force Us to Rethink Copyright’s Fundamentals? Highlights from the Platform Economy and Artificial Intelligence’ (2022) 53 *International Review of Intellectual Property and Competition Law* 1174, 1179–1180.

³⁹ CDPA, s 17, 20.

⁴⁰ *Twentieth Century Fox Film Corp v. British Telecommunications plc* [2011] EWHC 1981 (Ch) (*Newzbin2*) [2].

⁴¹ Tarleton Gillespie, *Custodians of the Internet: Platforms, Content Moderation, and the Hidden Decisions that Shape Social Media* (Yale University Press 2018) 16, 178.

⁴² *Cartier International AG v British Sky Broadcasting Ltd* [2016] EWCA Civ 658 [161].

online: unlike moral-rights claims, they fit routine decisions at scale because they require less highly contextual, reputation-sensitive judgment in practice today overall.

4.3 Contractual Governance and the Role of Intermediaries in Digital Uses

Contracts and platform rules determine how economic rights are exercised online. This is because digital exploitation is organised typically through licences.⁴³ Platform terms therefore define the permissions granted by uploaders, the scope of sharing, the treatment of repeat infringement, and the conditions governing monetisation, visibility, and dispute resolution. Private ordering thus does not merely supplement statutory rights; it provides the mechanism through which those rights operate online. *TuneIn* clarifies the point by showing that digital availability depends not simply on technical access, but on whether the relevant act of exploitation falls within authorised permissions.⁴⁴ That principle matters in platform environments because platforms structure exploitation through terms that allocate, define, and limit those permissions in advance. Contractual architecture therefore shapes the practical value of economic rights: creators may hold strong statutory entitlements yet still receive weak protection where terms are broad, reporting is limited, and review mechanisms remain opaque.

Intermediaries such as collecting societies shape outcomes because they control how economic rights are licensed, monetised, and enforced.⁴⁵ By aggregating rights, they reduce transaction costs and make availability possible across markets.⁴⁶ Yet concentration may weaken creators, because control over licensing controls reporting, royalty calculation, and access to audits. The legal significance is structural: digital exploitation depends not only on abstract ownership, but on the institutional arrangements through which permissions are organised across territories, publics, and markets. *TuneIn* supports that proposition because it shows that liability turns on authorised use rather than technical accessibility.⁴⁷ In platform markets, authorised use is

⁴³ British Academy and the Publishers Association, ‘Joint Guidelines on Copyright and Academic Research’ (British Academy and the Publishers Association 2008) 16.

⁴⁴ *Tunein* (n 34), [138].

⁴⁵ Ruth Towse, ‘Economics of Copyright Collecting Societies and Digital Rights: Is There a Case for a Centralised Digital Copyright Exchange?’ (2012) 9 Review of Economic Research on Copyright Issues 3, 12.

⁴⁶ Christian Handke, ‘Joint Copyrights Management by Collecting Societies and Online Platforms: An Economic Analysis’ (SSRN 2016) 1.

⁴⁷ *Tunein* (n 34), [138].

defined and channelled through intermediaries rather than creators directly. Doctrinal analysis should therefore move from a formal account of exclusive rights to a governance-based account of how those rights are operationalised, requiring clearer licensing scope, stronger reporting duties, and fairer dispute procedures.

5. Viral Culture and Copyright Priorities

The motion argues that the ease of sharing and the virality of online content make moral rights, especially attribution and integrity, more important in the digital environment than any economic rights. This chapter does not repeat earlier explanations of how platforms strip metadata or how licensing ecosystems work. It instead tests the motion by applying UK legal structure to three questions. First, can the right be triggered in time to matter in a viral setting. Second, can the claimant meet the doctrinal threshold with evidence that courts accept. Third, can the remedy be implemented through intermediaries at the scale of digital circulation.

5.1 Moral Rights Under Viral Pressure

UK moral rights carry normative appeal in a viral environment, but their practical force depends on whether they can operate before circulation becomes irreversible. The right to be identified as author seems important online because virality can disconnect a work from its original creator.⁴⁸ Yet UK law weakens that promise. The attribution right commonly requires prior assertion⁴⁹ and remains vulnerable to waiver,⁵⁰ so protection often depends on anticipatory action before any dispute arises. That design fits traditional publication practices better than contemporary platform circulation, where third parties can detach content from its source within minutes.⁵¹ A more purposive approach would treat stable digital authorship signals, such as embedded credits, metadata, or verified creator profiles, as satisfying assertion because they perform the same notice function. Even then, contractual waivers in platform and commissioning arrangements mean moral rights remain legally fragile precisely where viral dissemination makes them socially most valuable for creators seeking recognition and reputational continuity online.

The right of integrity in UK law reveals the same gap between moral urgency and legal operability in viral environments. The statute protects authors only against derogatory treatment is prejudicial to honour or reputation,⁵² so the claim begins with doctrinal threshold

⁴⁸ D. Bondy Valdovinos Kaye and others, ‘You Made This? I Made This: Practices of Authorship and (Mis)Attribution on TikTok’ (2021) 15 *International Journal of Communication* 3195, 3198.

⁴⁹ CDPA, s 78.

⁵⁰ *ibid*, s 87.

⁵¹ D. Bondy Valdovinos Kaye (n 48), 3198.

⁵² CDPA, s 80(2)(b)

rather than an objection to online misuse. That limit is justified because it prevents integrity from becoming a veto over parody, criticism, remix, or other transformative practices circulating online. *Confetti* illustrates the point: the claim failed not because alteration was irrelevant, but because prejudice was not sufficiently established.⁵³ The case therefore suggests a chain of reasoning. Viral recontextualisation may cause reputational harm,⁵⁴ yet claimants must still prove a qualifying treatment, show that the prejudice attaches to honour or reputation, and connect that prejudice to the altered work rather than to hostile captions, threads, or platform framing. For that reason, integrity has appeal online but remains only partially effective as a litigation tool in practice today.

These doctrinal features support a narrower conclusion than the motion suggests. Virality undoubtedly increases the salience of moral rights, because some immediate harms in digital circulation are reputational and identity based, and those harms may become practically irreversible once material is copied, remixed, and redistributed at scale. Yet legal importance in digital environments depends not only on the gravity of the harm, but also on whether a right can be triggered predictably, proved efficiently, and enforced at scale through intermediaries. Moral rights frequently require individualised proof,⁵⁵ may be limited by assertion⁵⁶ and waiver,⁵⁷ and remain difficult to embed in automated platform workflows. Their strongest function is therefore not to displace the economic-rights framework, which remains better suited to standardised platform governance, but to supply normative standards that shape platform architecture, moderation practice, and contractual drafting. On that basis, moral rights are better understood as complementary constraints than as rights more important than any economic right in the digital copyright ecosystem today overall.

5.2 Economic Rights as Structural Governance

⁵³ *Confetti* (n 25) [150].

⁵⁴ Jonas Brown-Pedersen, ‘The Inadequacy of UK Moral Rights Protection: A Comparative Study on the Waivability of Rights and Recontextualisation of Works in Copyright and Droit D’auteurs Systems’ (2018) 3 LSE Law Review 115, 116.

⁵⁵ Tanya F. Aplin and Ahmed Shaffan Mohamed (n 4), 270.

⁵⁶ CDPA, s 78.

⁵⁷ *ibid*, s 87.

Economic rights remain structurally central in UK copyright because they determine, at the outset, whether digital circulation is lawful before any later dispute about attribution, integrity, or reputation can arise. Under UK law, acts such as copying and communication are restricted,⁵⁸ while it extends communication to the public to forms of streaming and making works available online.⁵⁹ Those provisions matter not merely as abstract entitlements, but because they shape platform design *ex ante*: any service that hosts, curates, retransmits, or facilitates access to protected works must organise its technical architecture around authorisation. *ITV Broadcasting* confirms this by treating online retransmission as reaching a new public and therefore requiring permission.⁶⁰ *TuneIn* develops the same logic further, showing that liability may attach not only to direct hosting, but also to the way a service structures user access to unlicensed content.⁶¹ Virality therefore does not displace economic rights; instead, it intensifies their importance by increasing both the commercial value of authorised exploitation and the market harm caused by unauthorised dissemination.

Remedies also show why economic rights cannot be treated as secondary. In a viral environment, infringement is dispersed across online platforms,⁶² so effective relief must target intermediaries and infrastructure rather than individual users alone. In *Newzbin2*, the court granted an injunction aimed at disrupting a large-scale infringement service,⁶³ illustrating that UK courts will craft practical orders where economic harm is systematic, ongoing, and commercially significant across digital networks. That intermediary-focused logic also explains why economic rights are easier to operationalise at platform level than integrity-based claims, which usually depend on contested meaning,⁶⁴ contextual nuance,⁶⁵ and difficult proof of reputational prejudice.⁶⁶ This does not mean economic enforcement should be unchecked, since automated takedowns can suppress fair dealing uses such as quotation, criticism, review, and parody, especially where platform systems over-identify infringement. Even so, economic

⁵⁸ *ibid*, s 16.

⁵⁹ *ibid*, s 20.

⁶⁰ *ITV Broadcasting* (n 36) [26], [40].

⁶¹ *TuneIn* (n 34) [38].

⁶² H. Boshier and S. Yeşiloğlu (n 21), 177.

⁶³ *Newzbin2* (n 40) [2].

⁶⁴ *Confetti* (n 25) [153].

⁶⁵ *ibid* [154].

⁶⁶ *Pasterfield v. Denham* [1999] FSR 168, 182.

rights remain the enforcement backbone that platforms can translate into notice systems, filtering tools, revenue controls, and access restrictions, whereas moral rights more often depend on corrective responses such as restored credit, labelling of modified versions, and contextual notices in everyday platform practice.

A critical synthesis is relational rather than hierarchical, because the preceding analysis shows that moral rights and economic rights perform different but connected functions in digital copyright governance. Moral rights identify the reputational and personal harms that viral circulation can inflict on creators, especially through misattribution, misleading edits, and harmful recontextualisation. Economic rights, by contrast, provide the institutional machinery through which platforms structure permission, remuneration, and enforcement at scale. Neither set of rights is sufficient alone, because online disputes involve both expressive harm and market organisation. Moral rights should therefore shape the exercise of economic rights by being embedded into licences and platform rules, for example by making attribution a default condition of authorised use and by treating certain deceptive edits as breaches justifying rapid intervention. At the same time, economic rights should be interpreted and applied with attention to proportionality and to the breathing space preserved by UK exceptions. On this view, the motion should be rejected in its absolute form. Virality increases the urgency of moral rights, but it does not displace the structural centrality of economic rights. Rather, it strengthens the case for integrating moral-rights values into the economic-rights framework that governs digital circulation.

6. Conclusion

In conclusion, digital technologies make moral rights more visible and urgent, especially where attribution is lost and works are altered, reframed, or circulated virally without authorial control. However, the claim that they are more important than any economic rights is too absolute. Under UK law, economic rights still structure digital copyright because they govern copying, communication to the public, licensing, monetisation, and scalable enforcement through intermediaries and courts. Moral rights remain significant, but largely complementary: they address reputational and personal harm, while economic rights organise the market framework within which digital use occurs. The statement should therefore be rejected overall.

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